

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
September 3, 2026
8:30 a.m./1:30 p.m.

14. AMY GORDILLO V. TROY GORDILLO

23FL1014

On July 9, 2026, Petitioner filed a Request for Order (RFO) seeking bifurcation of status as well as waiver of Respondent's Preliminary and Final Declarations of Disclosure, and other various requests. Respondent was served via mail on July 9, 2026.

Respondent has not filed a Responsive Declaration therefore, the court deems his failure to do so as an admission that Petitioner's moving papers have merit. See El Dorado County, Local Rule 7.10.02(C).

California Rules of Court, rule 5.390(a) states that on noticed motion of a party, using form FL-300, "Request for Order," "the stipulation of the parties, case management, or the court's own motion, the court may bifurcate one or more issues to be tried separately before other issues are tried." (Italics added.)

Family Code section 2337 provides that "[i]n a proceeding for dissolution of marriage, the court, upon noticed motion, may sever and grant an early and separate trial on the issue of the dissolution of the status of the marriage apart from other issues." Fam. Code, § 2337, subd. (a). The trial court may separately try the issue of termination of marriage if doing so "is likely to simplify the determination of the other issues." Cal. Rules of Court, rule 5.390(b)(7).

Public policy favors bifurcation of trial on pivotal issues in a dissolution action. In re Marriage of Macfarlane & Lang (1992) 8 Cal.App.4th 247, 257; see In re Marriage of Wolfe (1985) 173 Cal.App.3d 889, 893–894 ["To the extent bifurcation of issues such as custody, support or the division of community property can assist the parties to achieve settlement of remaining issues, it should be encouraged"]. For the issue of marital status, "[c]onsistent with the legislative policy favoring no fault dissolution of marriage, only slight evidence is necessary to obtain bifurcation and resolution of marital status. On the other hand, a spouse opposing bifurcation must present compelling reasons for denial." Gionis v. Superior Court (1988) 202 Cal.App.3d 786, 790.

The minimum statutory requirements for bifurcating and terminating marital status are that six months must have passed since the date of service of the summons and petition (§ 2339, subd. (a), and that the party seeking termination of marital status must have served a preliminary declaration of disclosure or obtained a written agreement to defer service to a later date (§ 2337, subd. (b)). Both requirements were met here.

Parties are ordered to appear for the bifurcation.

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Family Code sections 2104 imposes on each party the obligation of making a preliminary disclosures of assets (PDD) within the specified timeframes. For the party responding to a Petition for Dissolution, the disclosure is due either concurrently with the response or within 60 days of filing the same. Where a party fails to comply with Section 2104, the complying party may, among other things, file a motion to compel and seek sanctions against the noncomplying party. Fam. Code § 2107(b)(1). “[T]he court *shall*...impose monetary sanctions against the noncomplying party. Sanctions shall be in an amount sufficient to deter repetition of the conduct or comparable conduct, and *shall* include reasonable attorney’s fees, costs incurred, or both, unless the court finds that the noncomplying party acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” Fam. Code § 2107(c).

Here, Petitioner has complied with the law and served her PDD; as such she has standing to assert her demand for the same pursuant to Family Code Section 2107. Accordingly, Respondent is ordered to serve full and complete preliminary declarations of disclosure, with supporting documents, no later than October 2, 2026. If Respondent fails to do so, the court finds good cause to waive Respondent’s PDD.

At this time, the matter is not pending trial, and as such, Respondent’s Final Declaration of Disclosure are not due, as they are to be served at least 45 days prior to trial. The court reserves on Petitioner’s request to waive Respondent’s Final Declarations of Disclosure.

Petitioner is also seeking findings regarding the date of separation. The court finds it will have to take testimony on that issue. Parties are ordered to appear for the hearing.

Last, Petitioner is seeking restoration of her former name. The court will address that request at the time of the bifurcation of status hearing.

All prior orders not in conflict with these orders remain in full force and effect. Petitioner is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court’s adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #14: PARTIES ARE ORDERED TO APPEAR FOR THE BIFURCATION OF STATUS HEARING. PARTIES ARE LIKEWISE ORDERED TO APPEAR FOR THE HEARING ON THE ISSUE OF THE DATE OF SEPARATION.

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RESPONDENT IS ORDERED TO SERVE FULL AND COMPLETE PRELIMINARY DECLARATIONS OF DISCLOSURE, WITH SUPPORTING DOCUMENTS, NO LATER THAN OCTOBER 2, 2026. IF RESPONDENT FAILS TO DO SO, THE COURT FINDS GOOD CAUSE TO WAIVE RESPONDENT'S PDD.

AT THIS TIME, THE MATTER IS NOT PENDING TRIAL, AND AS SUCH, RESPONDENT'S FINAL DECLARATION OF DISCLOSURE ARE NOT DUE, AS THEY ARE TO BE SERVED AT LEAST 45 DAYS PRIOR TO TRIAL. THE COURT RESERVES ON PETITIONER'S REQUEST TO WAIVE RESPONDENT'S FINAL DECLARATIONS OF DISCLOSURE.

ALL PRIOR ORDERS NOT IN CONFLICT WITH THESE ORDERS REMAIN IN FULL FORCE AND EFFECT. PETITIONER IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.